



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: UDC-24-64 | RV Park
Date: August 26, 2024

Background:

The item for consideration is an *Outside User Agreement*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction 8/26/2024
- Public Services Committee 9/4/2024
- Consideration 9/9/2024

Attachments:

1. Resolution
2. Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING SANITARY SEWER SERVICE, BY OUTSIDE USER AGREEMENT, FOR OH HAIL NO LLC, FOR LAND LOCATED SOUTH OF ROBERT AVENUE AND WEST OF SOUTH GREELEY HIGHWAY."

WHEREAS, Oh Hail No LLC is the owner of a property in Laramie County, Wyoming, more specifically described as:

13-66: A PARCEL OF LAND SITUATE IN THE NORTH 1/2 OF SEC 29, DESC AS: BEG AT A POINT, MONUMENTED WITH A 2" BRASS CAP, ON THE WEST R/W LINE OF US HWY 85, SAID POINT BEING COINCIDENT WITH THE NORTHEAST CORNER OF TRACT 90, BISON CROSSING, 4TH FILING, AND WHICH POINT BEARS S.50 DEG 30'57"E. FROM THE NORTHWEST CORNER OF SAID SEC 29, 3,614.10'; TH N.89 DEG 23'00"W., ALONG THE NORTH LINE OF SAID BISON CROSSING SUBDIVISION, 4TH FILING, 503.26' TO THE EAST LINE OF THAT PARCEL DESCRIBED IN BOOK 2622, PAGE 1228; TH N.00 DEG 37'36"W., ALONG SAID EAST LINE, 926.69' TO THE NORTH LINE OF THAT PARCEL DESCRIBED IN BOOK 2622, PAGE 1228; TH N.82 DEG 21'13"W., ALONG SAID NORTH LINE, 40.01' TO THE SOUTHEAST CORNER OF TRACT 4, CATHCART SUBDIVISION; TH N.00 DEG 34'08"W., ALONG THE EAST LINE OF SAID TRACT 4, 279.95' TO THE SOUTH R/W LINE OF ROBERT AVENUE; TH S.89 DEG 24'51"E., ALONG SAID SOUTH LINE, 80.02' TO A THE NORTHWEST COMER OF TRACT 3, CATHCART SUBDIVISION; TH S.00 DEG 34'08"E., ALONG THE WEST LINE OF SAID TRACT 3, 289.88' TO THE SOUTHWEST CORNER OF SAID TRACT 3; TH S.89 DEG 24'46"E., ALONG THE SOUTH LINE OF SAID TRACT 3, 427.47' TO THE WEST R/W LINE OF US HWY 85; TH S.02 DEG 50'46"E., ALONG SAID WEST LINE, 923.43' TO THE POB.

WHEREAS, Oh Hail No LLC ("the Applicant") submitted an application to the City of Cheyenne and the Board of Public Utilities ("BOPU") for water and/or sanitary sewer services outside of the corporate limits of the City of Cheyenne for the above-referenced properties;

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, BOPU has reviewed the application submitted by the Applicant, and BOPU and the Applicant will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the applications for sanitary sewer services and water services submitted by the Applicant and has determined that approval is in the best interest of the City of Cheyenne, provided that the proposed development will comply with City Standards, or applicable City relief processes.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the application submitted by the Applicant to BOPU for sanitary sewer services and water services outside of the corporate limits of the City of Cheyenne for the property more specifically described above, is hereby approved, with the following conditions: 1. the proposed development shall comply with City Standards, or applicable City relief processes; and, 2. the property owner initiates annexation pursuant to Wyo. Stat. § 15-1-403 within one hundred and eighty (180) days of approval of this resolution.

BE IT FURTHER RESOLVED, that BOPU and the Applicant are authorized to approve and execute Outside User Agreement(s), subject to the condition(s) imposed by the Governing Body.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



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CITY OF CHEYENNE GOVERNING BODY
AUGUST 26, 2024
STAFF REPORT

FILE: PUDC-24-130: RV Campground – Outside User Agreement

REQUEST: An outside user agreement for the provision of sewer and water to a property outside City limits.

LOCATION: South of Robert Avenue and west of South Greeley Highway.

APPLICANT: Oh Hail No

AGENT: AVI PC

OWNERS: Oh Hail No

PREPARED BY: Connor White, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne
- Resolution 3577

BACKGROUND:

The applicant is requesting connection to BOPU sanitary sewer services and water services for property outside City limits. It is City Staff's understanding that the property is intending to develop using a funding source that is unavailable if the property is within City limits. Subsequent to securing funding, the owner would then annex into the City. This property is currently vacant but is proposed to have an RV Campground. There is currently no existing sewer in the area or other outside user agreements. City water is currently adjacent to the property along the east side.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial	County Planned Unit Development (PUD)	Vacant
North	Mixed-use Commercial	County Planned Unit Development (PUD)	Church
South	Mixed-use Commercial	County AR	Single-family Residential
East	Industrial	AG Agricultural	Vacant
West	Mixed-use Commercial	County Planned Unit Development (PUD)	Single-family Residential

The property is currently zoned a PUD Planned Unit Development in the County.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

The request for an outside user agreement has no formal review criteria; however, the following elements should be considered when reviewing outside user agreements:

- BOPU capacity
- Needed infrastructure improvements
- Population served
- Considerations on the effect on future annexation(s)
- Fiscal cost/benefit to the City and the BOPU
- Conformance with the Comprehensive Plan

The requested outside user agreement has minimal impact on BOPU's system capacity. The proposed use of the property for an RV campground. Sewer will need to be developed in the area and connected into the proposed sewer within Bison Business Park to the east across South Greeley Highway or it will need to connect north into South Cheyenne Water and Sewer district. Water is available along the east side of the property within the South Greeley Highway right-of-way.

Property tax would increase, but the City would not have any income from the property tax in the area at this time. The BOPU may charge a higher rate for outside users. The sewer infrastructure will need to be extended to this area as it does not exist already, and Developer will be responsible for extending the infrastructure. City police, fire, and sanitation services are within this area as Bison Business Park is to the east across South Greeley Highway. Staff's understanding is that this property will be annexed into the City once funds are secured. The funds looking to be secured are only available if the development takes place outside City limits. Staff recommends a condition that the applicant annex pursuant to Wyo. Stat. § 15-1-403 within 180-days of approval of this resolution.

The Comprehensive Plan designates this area as Mixed-use Commercial – and the proposed use in this location is consistent with that anticipated development pattern.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Conformance with PlanCheyenne is discussed above.

STAFF REVIEW:

Through the review process, the following comments were received:

- Planning and Engineering
 - The proposed development will comply with City Standards, or applicable City relief processes.

CONCLUSION:

Staff is satisfied that the application is acceptable based on the considerations specific to this request and therefore recommends approval of the outside user agreement with the conditions that the proposed development shall comply with City Standards, or applicable City relief processes and that the property be annexed within 180-days of the approval of the resolution.

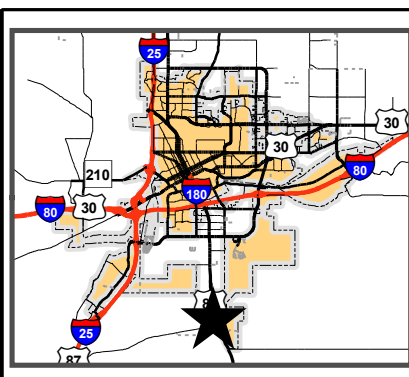
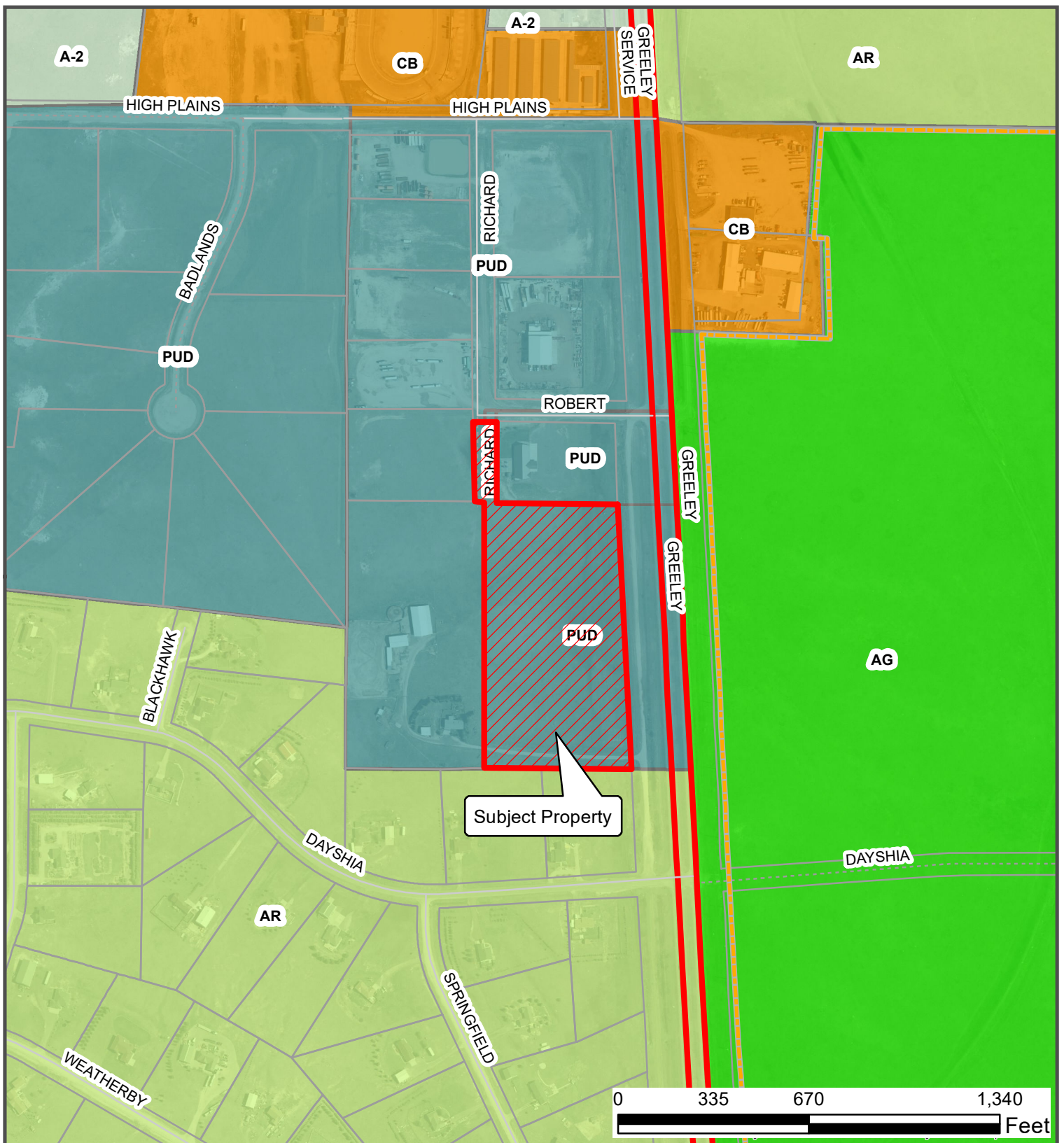
STAFF RECOMMENDATION:

Staff recommends approval of the proposed outside user agreement subject to the following conditions:

1. The proposed development shall comply with City Standards, or applicable City relief processes.
2. The property owner initiates annexation pursuant to Wyo. Stat. § 15-1-403 within 180-days of approval of the resolution.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Application
4. Applicant-submitted proposed site plan

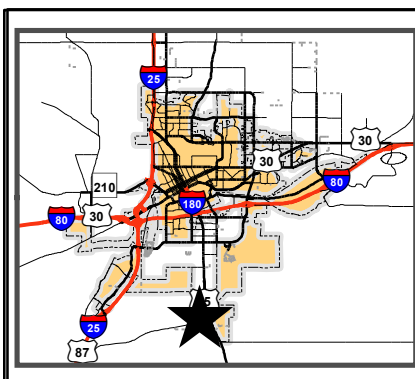
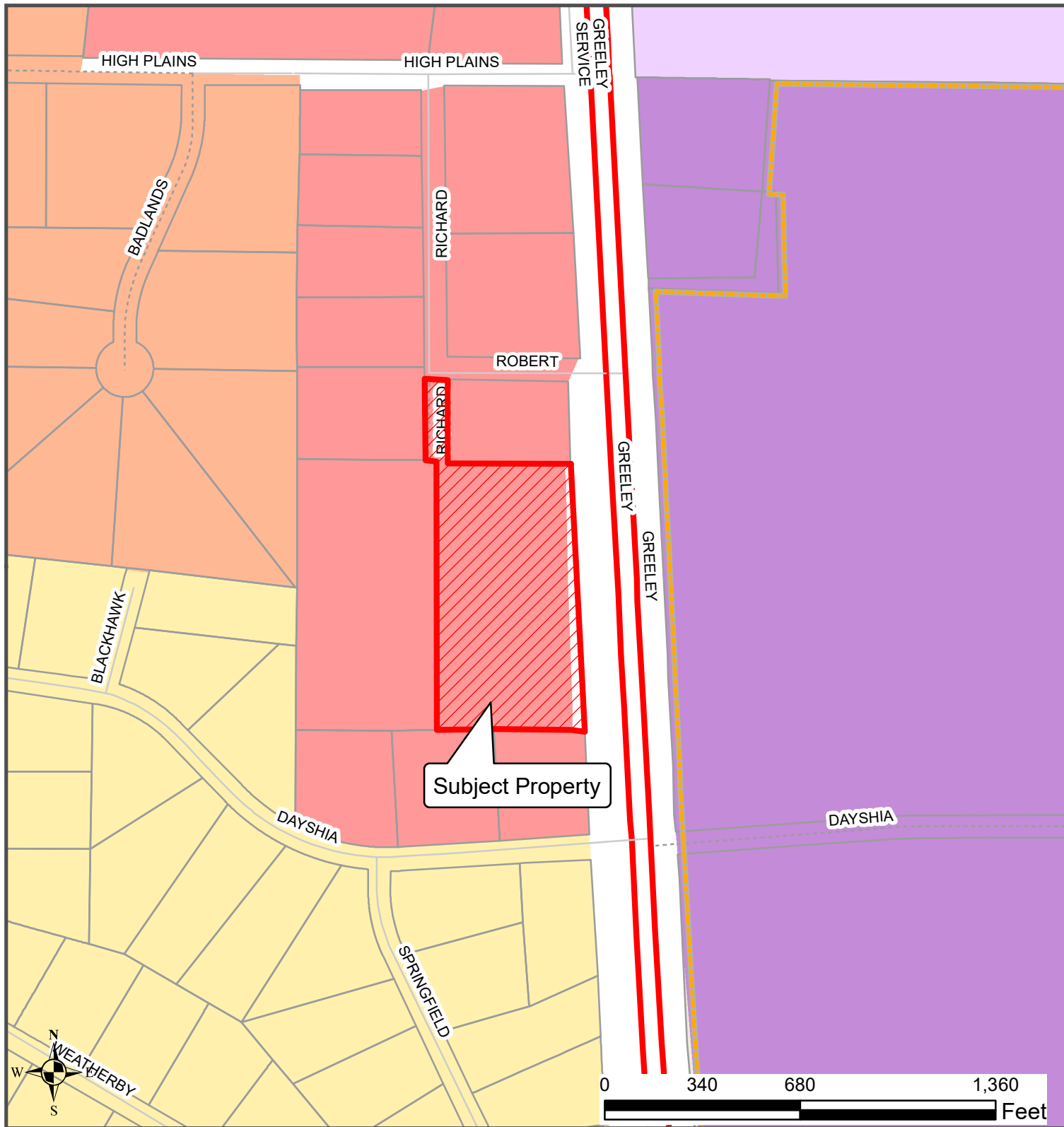


Attachment 1: Zoning Map PUDC-24-130

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-130

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Ownership		

PUDC-24-130

Outside User's
Agreement

Status: Active
Submitted On: 7/17/2024

Primary Location

0 S GREELEY HWY
Cheyenne, WY 82007

Owner

OH HAIL NO LLC
5825 INDIGO DR CHEYENNE,
WY 82001

Applicant

 AVI PC
 307-637-6017
 avi@avipc.com
 1103 Old Town Lane #101
Cheyenne, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Written Statement*

Connect water and sewer facilities for a 95 space RV park to existing BOPU
water and sewer infrastructure

I understand that I may not be eligible for an
Outside User's Agreement if the property is close
to current City limits.*

☒

Number of connections to the BOPU system
proposed*

3



Dwelling units served* 

95

Anticipated jobs created* 

4

Review Criteria

BOPU has the capacity to serve.*

☒

The connection(s) proposed have a logical layout.*

☒

Effect of population served (employees or residents).*



Serving the property will not be detrimental to the City's ability to annex in the area.*



The anticipated financial impact to the City and BOPU. This is more than the direct costs or payments, and will include effects like property taxes, sales taxes, maintenance costs, etc.*



The Comprehensive Plan's anticipated use patterns for the area.*



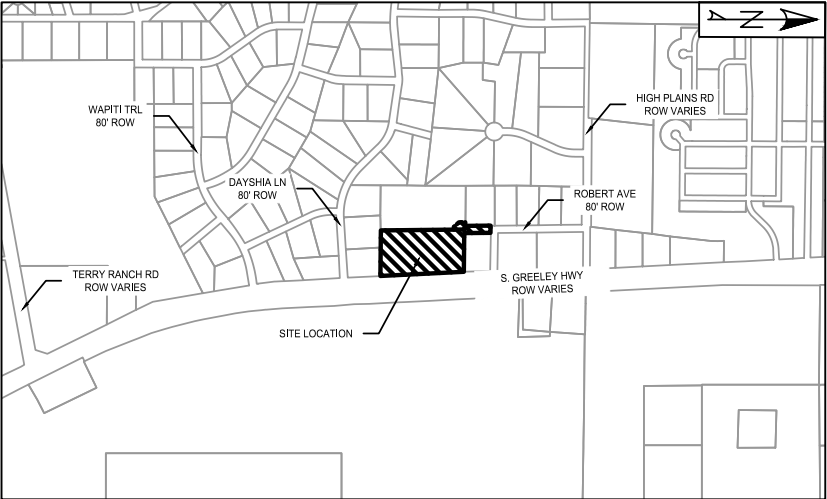
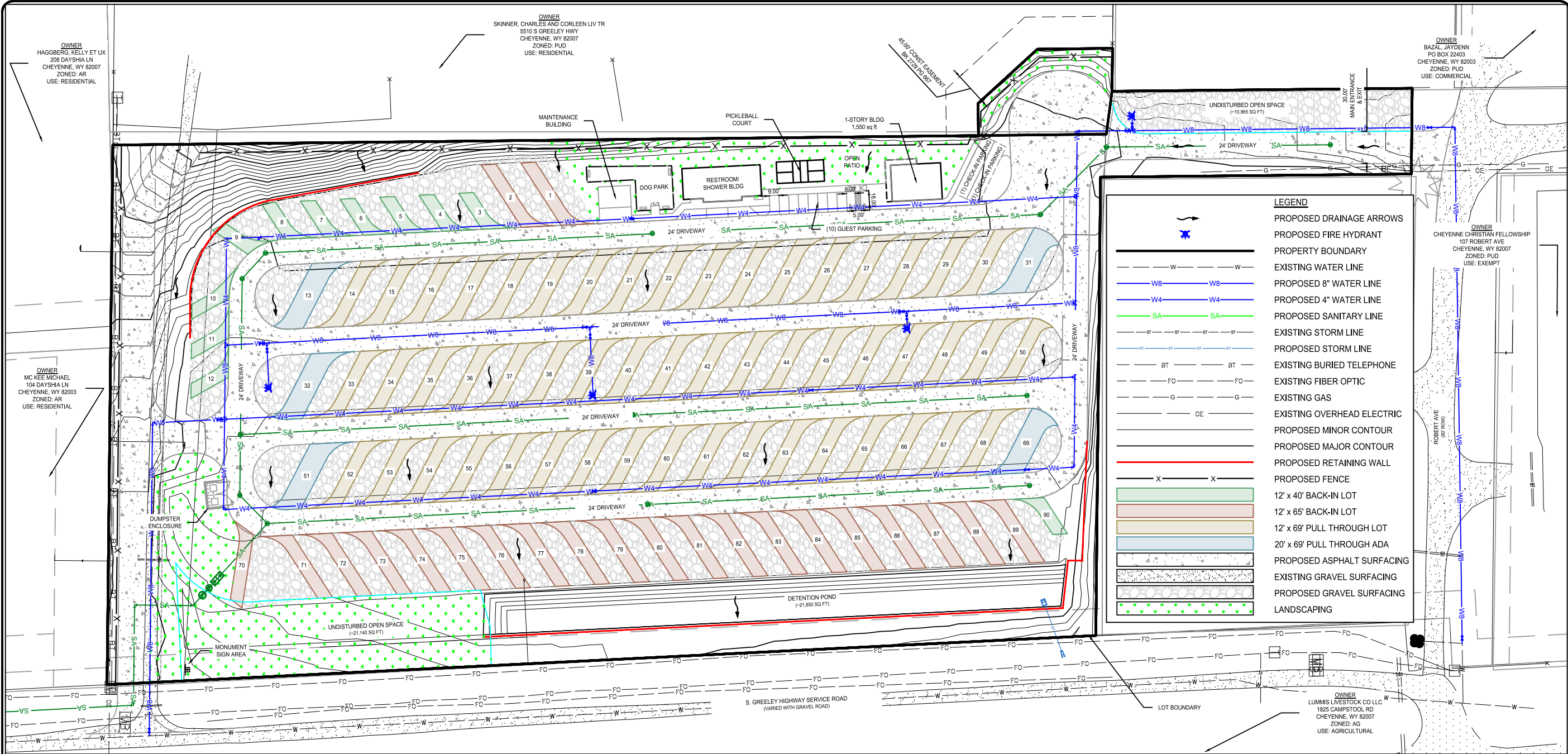
Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Brad Emmons

Jul 17, 2024



COMPUTATION TABLE

TOTAL PROJECT AREA = 10.79 AC. (470,227 SQ FT)
TOTAL PROJECT BUILDING FOOTPRINT AREA = 4,375 SQ FT
TOTAL PROJECT PAVED AREA (PARKING) = 1,680 SQ FT
TOTAL PROJECT IMPERVIOUS AREA = 136,285 SQ FT (29% OF PROJECT AREA)
TOTAL PROJECT LANDSCAPING AREA = 48,550 SQ FT (10.3% OF PROJECT AREA)

RV PARKING ORANGE AREA = 43,056 SQ FT
RV PARKING BLUE AREA = 8,646 SQ FT (*INC. ACCESS AREA)
RV PARKING GREEN AREA = 7,680 SQ FT
RV PARKING RED AREA = 17,160 SQ FT
TOTAL RV PARKING AREA = 76,542 SQ FT

PARKING

RV PARKING ORANGE = 52 SPACES
RV PARKING BLUE = 5 SPACES
RV PARKING GREEN = 16 SPACES
RV PARKING RED = 22 SPACES
TOTAL RV PARKING = 95 SPACES

REQUIRED PARKING = 5 SPACES
REQUIRED ACCESSIBLE PARKING = 1 SPACE
PROVIDED ON-SITE PARKING
HANDICAP - 2 SPACES (2 SPACES ARE VAN ACCESSIBLE)
REGULAR - 8 SPACES
CHECK-IN PARKING - 2 SPACES
TOTAL - 12 SPACES

ZONING & USE

CURRENT ZONING: CATHCART PUD (PLANNED UNIT DEVELOPMENT)
CURRENT USE: COM VACANT LAND

REQUIRED SETBACKS

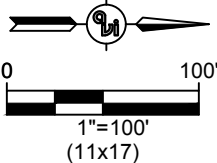
BUILDING MUST BE AT LEAST 25' FROM PROPERTY LINES
ADJACENT TO STREETS RIGHT OF WAYS

NOTES

- ALL CONSTRUCTION SHALL BE IN ACCORDANCE WITH THE CURRENT WYOMING PUBLIC WORKS STANDARDS, AND PROJECT SPECIFICATIONS.
- SUBGRADE UNDER GRADING "W" BASE SURFACES SHALL BE COMPACTED TO 95% ASTM D698, 8" MOISTURE DENSITY CONTROL, AND PROOF ROLLED. CONTRACTOR SHALL VERIFY ALL EXISTING UTILITIES AND CHECK FOR CONFLICTS AGAINST PROPOSED UTILITIES.
- PUBLIC WATER AND WASTE SYSTEMS TO CONNECT TO EXISTING BOPU UTILITIES.

OWNER

NAME: OH HAIL NO LLC
ADDRESS: 5825 INDIGO DR, CHEYENNE, WY 82001
ZONED: PUD
USE: VACANT LAND



SOUTH GREELEY HIGHWAY
RV PARK

LOCATED IN A PORTION OF THE N $\frac{1}{2}$ OF SECTION 29, T13N, R66W
OF THE 6TH PRINCIPAL MERIDIAN,
LARAMIE COUNTY, WYOMING
PREPARED JULY 2024

DATE	
REVISION	
NO.	
PREPARED FOR: RECREATIONAL INVESTMENT GROUP 3514 CEDAR SPRINGS RD DALLAS, TX 75219	
PROJECT: S. GREELEY HWY RV PARK	
DRAWING TITLE: SITE PLAN	
 ENGINEERING · PLANNING · SURVEYING	
307.637.6017 1103 OLD TOWN LANE, SUITE 101 CHEYENNE, WY 82009 AVI@AVIPC.COM	
DATE PLOTTED: Jul 17, 2024	
DRAWN BY: IJ, NG	
DESIGNED BY: IJ	
CHECKED BY:	
JOB NO.: 4852	
DWG NO. 1 OF 1	